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THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, president, Prof.
Ginevra Cerrina Feroni, vice president, Dr.
Agostino Ghiglia, and Attorney Guido Scorza, members, and
Counsel Fabio Mattei, secretary general;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016 (hereinafter "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003 (Code regarding
the protection of personal data, hereinafter "Code") as amended by Legislative Decree No. 101 of
August 10, 2018, containing "Provisions for the adaptation of
national legislation to the provisions of Regulation (EU) 2016/679";

HAVING REGARD TO the report prepared by the
Municipal Police of the Municipality of Florence at
the residence of Mr. XX, located at XX, XX, which confirmed the presence of a
surveillance system, active and functioning, capable of
recording the public road;

HAVING EXAMINED the documentation on file;

HAVING REGARD TO the observations made by the secretary
general pursuant to Article 15 of the Guarantor's regulation No. 1/2000;

REPORTING Attorney Guido Scorza;

WHEREAS

1. The verification by the Financial Police.
With a note dated 11.8.2022, the Financial Police –
Special Unit for Privacy Protection and Technological Fraud –
forwarded to this Authority a report from the
Municipal Police of the Municipality of Florence regarding
the non-compliant installation of a surveillance system by Mr. XX, at his
residence located at XX, XX, as,

from the examination of some frames – sent by him
to the aforementioned Command in the context of a
proceeding concerning the irregular parking of cars
parked in the part of the road in front of his
residence – it was noted that "the framing of
the aforementioned surveillance system would
be widely extended to the entire public road."

Subsequently, during the on-site verification
requested by the Guarantor to clarify the reported
issue, the Municipal Police of the Municipality of
Florence confirmed, producing relevant
photographic documentation, that, in addition to the sidewalk
immediately adjacent to the façade of the building,
the cameras were capable of recording the public
road where vehicles and pedestrians transit; Mr.

XX, questioned about the reasons for the extension of the cameras' field of view to the public road, stated that he had "installed the surveillance system for personal safety reasons, as his residence is located on the ground floor of a street near Campo di Marte."

The Office, based on the verifications carried out as per the aforementioned report, notified, with a note dated 28/06/2023 (prot. n. 100608), Mr. XX of the initiation of the procedure for the adoption of measures pursuant to Articles 58, paragraph 2, and 83 of the Regulation, in accordance with the provisions of Article 166, paragraph 5, of the Code, in relation to the violation of Articles 5, paragraph 1, letters a), c) and 6 of the Regulation.

The party, with a note dated 17/07/2023, sent to the Guarantor defensive writings or documents in relation to the proceeding against him, stating that:

- the surveillance cameras were installed in January 2021, for security purposes, considering the dangerousness of the area where he resides and the occurrence of illegal acts against his properties;
- the cameras are capable of recording "all 25 meters of (my) façade which, due to its length, can only be framed from above."
- the video from the system activates only in the presence of loud noises and when someone rings the front doorbell.

Regarding the suitability of the cameras to record the public road, the party did not provide any specific statement in this regard.

2. The legal framework of the processing carried out.

In general, it is observed that, based on Article 2, paragraph 2 of the Regulation, when the processing is carried out by a "natural person for the exercise of activities of an exclusively personal or domestic nature," the provisions of the Regulation do not apply. In this regard, Recital No. 18 of the Regulation specifies that "activities of an exclusively personal or domestic nature" are those carried out without establishing a connection with a commercial or professional activity.

The use of surveillance systems by individuals in areas of direct interest (such as those concerning their domicile and its appurtenances) is therefore generally considered excluded from the material scope of the provisions on data protection, as they fall within the processing carried out for the exercise of activities of an exclusively personal and domestic nature. This is provided that the scope of data communication does not exceed the family sphere of the data subject and that the images are not subject to communication to third parties or

dissemination and that the processing does not extend beyond the strictly relevant areas of the data subject by capturing images in common areas (including condominium types such as staircases, hallways, parking lots), publicly accessible places (streets or squares), or areas belonging to third parties (gardens, terraces, doors or windows of third-party properties).

In such circumstances, therefore, the processing conducted must be considered unlawful as it lacks an appropriate legal basis. Only in the presence of actual risk situations can the data controller, based on a legitimate interest, extend the coverage of the cameras to areas beyond their exclusive domain, provided that this is adequately justified and supported by appropriate documentation (e.g., reports, threats, thefts). In such cases, the data controller is required to comply with the provisions regarding the protection of personal data, as outlined in the Guidelines No. 3/2019 on the processing of personal data through video devices, adopted by the European Data Protection Board, and in the General Provision on video surveillance dated April 8, 2010 (available on the Authority's website www.gpdp.it, doc. web 1712680).

In the case at hand, the investigation carried out has highlighted that the coverage of areas beyond those of relevance occurred in the absence of suitable legitimacy grounds, considering that:

- the data controller has not demonstrated the existence of a legitimate interest related to an actual risk situation that would justify such processing;
- the area covered by the cameras extends well beyond the zones to be protected.

3. Conclusions: unlawfulness of the processing carried out. In light of the evaluations that precede, considering all the elements acquired during the investigation, it is believed that the conduct of Mr. XX is contrary to the principle of lawfulness set forth in Article 5, paragraph 1, letters a, c, of the Regulation, as well as lacking suitable legitimacy grounds pursuant to Article 6 of the same Regulation.

The Authority, pursuant to Article 58, paragraph 2, letter i) of the Regulation and Article 166 of the Code, has the power to impose an administrative monetary penalty as provided for in Article 83, paragraph 5, of the Regulation, through the adoption of an injunction order (Article 18, Law No. 689 of November 24, 1981), in relation to the processing of personal data carried out through the video surveillance system.

With reference to the elements listed in Article 83, paragraph 2, of the Regulation for the application of the administrative monetary penalty and its quantification, considering that the penalty must be "effective, proportionate, and dissuasive in each individual case" (Article 83, paragraph 1 of the Regulation), it is represented that, in this case, the following circumstances have been taken into account:

- regarding the nature, gravity, and duration of the violation, the conduct of the data controller, which is still ongoing and involves an indefinite number of data subjects, has been considered;
- the circumstance that, despite the cooperation of the party with the Authority during the proceedings, no suitable elements were provided to support the extension of the camera coverage to include a public road, nor was any information provided regarding any initiatives undertaken to restrict the camera's field of view to only the areas of exclusive property or immediately adjacent to them, in order to mitigate the interference with the rights of the data subjects.

In light of the aforementioned elements, assessed as a whole, it is deemed appropriate to determine the amount of the monetary penalty at €400.00 (four hundred) for the violation of Articles 5, paragraph 1, letters a), c) and 6 of the Regulation.

In this context, also considering the type of violation established, it is believed that, pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Authority's Regulation No. 1/2019, the publication of this provision on the Authority's website should proceed.

Finally, it is noted that the conditions referred to in Article 17 of Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers

entrusted to the Authority, are present.

ALL OF THE ABOVE CONSIDERED, THE AUTHORITY declares, pursuant to Articles 57, paragraph 1, letter f) and 83 of the Regulation, the unlawfulness of the processing carried out by Mr. XX, born in XX on XX, residing in XX, XX Tax Code XX, through the use of the video surveillance system, in the terms stated in the reasoning, for the violation of Articles 5, paragraph 1, letters a), c) and 6 of the Regulation;

ORDERS Mr. XX to pay the sum of €400.00 (four hundred) as an administrative monetary penalty for the violation indicated in the reasoning;

ENJOINS the same to comply, pursuant to Article 58, paragraph 2, letter d) of the Regulation, with the processing of data carried out in accordance with the provisions of the Regulation and where he has not already spontaneously complied, with reference to the areas covered by the cameras, in such a way as to limit the coverage to the areas of his own relevance;

to pay the sum of €400.00 (four hundred), according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to Article 27 of Law No. 689/1981. It is represented that pursuant to Article 166, paragraph 8 of the Code, the offender retains the option to resolve the dispute by payment – always according to the methods indicated in the annex – of an amount equal to half of the imposed penalty within the deadline referred to in Article 10, paragraph 3, of Legislative Decree No. 150 of September 1, 2011 provided for the...

proposition of the appeal as indicated below.

ORDERS

pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Regulation of the Guarantor No. 1/2019, the publication of this provision on the Guarantor's website and considers that the conditions set forth in Article 17 of Regulation No. 1/2019 are met.

It is also ordered that the initiatives taken to implement the provisions of this decision be communicated and to provide adequately documented feedback in accordance with Article 157 of the Code, within the term of 90 days from the date of notification of this provision; any failure to respond may result in the application of the administrative sanction provided for by Article 83, paragraph 5, letter e) of the Regulation.

Pursuant to Article 78 of the Regulation, Articles 152 of the Code, and Article 10 of Legislative Decree No. 150 of September 1, 2011, an appeal against this provision may be filed before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, July 4, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Scorza

THE SECRETARY GENERAL

Mattei